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NYS DEC VIRTUAL PUBLIC HEARING

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IN RE: DRAFT AIR STATE FACILITY PERMIT FOR APPLICANT

- BROOKLYN UNION GAS COMPANY

VOLUME II

BEFORE: MOLLY T. McBRIDE, ADMINISTRATIVE LAW JUDGE
NYS DEPARTMENT OF ENVIRONMENTAL CONSERVATION

MICHAEL CARUSO, ADMINISTRATIVE LAW JUDGE
DEC OFFICE OF COMMUNICATION SERVICES

ALSO PRESENT:
MARIA KATCHMAR
ANDREA LINTON
STEPHEN WATTS
GLENN GOLDSTEIN

March 11, 2021
1:00 p.m.

Reported by:

Karen A. Nickel
Certified Realtime Reporter

P R O C E E D I N G S

JUDGE McBRIDE: Okay. I would like to get started. Good afternoon, everyone. My name is Molly McBride and I am an administrative law judge with the New York State Department of Environmental Conservation.

I will be presiding over today's public comment hearing to accept comments on the application of the Brooklyn Union Gas Company. The New York State Department of Environmental Conservation has issued a draft permit and made a tentative determination to issue an air state facility permit to the Brooklyn Union Gas Company, doing business as National Grid, for the operation of their existing permitted Air Title V facility known as the Greenpoint Energy Center located in Brooklyn.

This public comment hearing is being held to the Webex electronic web platform. Notice of this hearing was published in the Department's environmental notice bulletin on February 3, 2021 and in the Brooklyn Daily Eagle on February 5, 2021.

Assisting me today with the hearing

are Administrative Law Judge Michael Caruso, and from the DEC Office of Communication Services, Maria Katchmar and Andrea Linton.

I would like to introduce all the panelists that you will see in attendance here today so that you know who all the panelists are.

First you have Administrative Law Judge Michael Caruso. We have our court reporter, Karen Nickel. We have Stephen Watts from the DEC Region 2 office, Maria Katchmar, who I indicated is from the DEC Office of Communications.

We have a Donna Roberts, also from the Office of Communication Services in our Region 2 office, Andrea Linton, DEC Office of Communication Services, Caitlyn Nichols, DEC Region 2 office, Cathy Waxman, National Grid, Glenn Goldstein, National Grid, Carl Berger from the DEC office of Communication Services, Rodney Rivera, who is from the DEC Region 2 office, and Stephen Watts is from the DEC Region 2 office.

There are people who are attending this hearing over the Internet and there are

people who are participating by phone. In either case, you should only have one audio input from one device. Otherwise, you will experience problems with feedback.

Everyone has been muted today upon entry. If you experience technical issues, you may call Area Code 518-402-8044. Again, that number is Area Code 518-402-8044.

For those of you who are attending over the Internet, you will also see in the lower right corner we have a chat feature. You can enter any issues that you are having with technical problems in the chat box and we will try to help you.

The purpose of today's public comment hearing is to allow members of the public to comment on the project. Today is not a question and answer session. Comments will be accepted at this hearing today and at two more public comment hearing sessions. We have a session this evening at 5:00 p.m. and a session at 5:00 p.m. on March 18, 2021. We had a hearing session last evening as well.

Also, written comments will be accepted until March 22, 2021. All written

comments submitted by E-mail must be received by the department by 5:00 p.m. on March 22, 2021 to be considered. Comments submitted by mail must be postmarked by March 22, 2021.

The department gives equal weight to written and oral comments. For those who are attending this hearing via the Internet, we have the information on the screen as to how to submit written comments. In a minute, I will read out the address for the submission of written comments for those who are joining us by phone only.

Anyone who wishes to speak today was required to register by March 5, 2021. Today we will call on elected officials first and then all registered speakers in the order in which they have registered.

Due to the number of people who wish to speak, we are going to limit each speaker to three minutes. Please be respectful of that time limit. If you have not completed your remarks after three minutes, we will ask you to conclude your remarks. There will be no exceptions to the three-minute time limit.

For those who are attending over the

Internet, there will be a three-minute timer on the screen to help you keep track of your time. For those on the phone, when your time has run, I will let you know that your time is over.

We will call your name when it is your turn to speak and at that time your line will be unmuted. If you have attended by phone, we will ask you to press Star 3 on your phone when we call your name so that you can raise your hand and we can unmute your line. Please do not press Star 3 on your phone until we call your name.

When you do make your statement, please speak loudly, slowly and clearly. All comments are being recorded by a court reporter and if we cannot hear you, there is a risk that your statement will not be recorded accurately.

Before we begin the public comments, DEC staff will give an overview of this matter and then a representative of National Grid will give a brief presentation regarding the project. First we'll hear from Stephen Watts from the DEC's Region 2 office.

Go ahead, Mr. Watts.

MR. WATT: Good afternoon,

Judge McBride, members of the public, elected officials and representatives. My name is Steve Watts and I am the regional permit administrator for the New York State Department of Environmental Conservation, Region 2.

On May 11, 2020, the Department received an application from the Brooklyn Union Gas Company, doing business as National Grid, for a Part 201 air state facility permit for the continued operation of their existing permitted Air Title V facility, the Greenpoint Energy Center located at 287 Maspeth Avenue in Brooklyn. With this application, National Grid proposes to downgrade their current Air Title V permit to an air state facility permit by capping facility-wide oxides of nitrogen emissions, a/k/a NOx, to 24.9 tons per year.

The Air Title V permit will be relinquished and discontinued upon issuance of an air state facility program. This downgrade will result in lower total -- in a lower total NOx emissions limit, as the current Air Title V permit has a total NOx emissions limit of 47.4 tons per year.

Additionally, the facility also

proposes to install two new 42.76 MMBtu per hour vaporizers to be used to vaporize liquified natural gas. The application states that the two new vaporizers are proposed to increase the facility's send out capacity. This will not affect the overall storage capacity of the LNG tanks. National Grid's presentation will contain more detail on their proposal.

The Department determined that the Greenpoint Energy Center's permit application was technically and administratively complete and a notice of complete application was issued November 2020. The public comment period associated with that notice remains open until March 22, 2021.

It should be noted that following a recent discussion, National Grid has amended its application to reduce the proposed project scope and, as a result, no longer proposes to install two new compressed natural gas, CNG, injection heaters. The CNG heaters originally included in the application were proposed in order to supplement natural gas supply by injecting CNG delivered by trucks as needed on

a temporary basis during periods of peak demand.

The Department reviewed the amended application, revised the draft permit and provided notification to interested parties, including elected officials, environmental groups and community-based organizations on March 1, 2021. All information including the original materials, the amended application, the new draft permit and how to provide written comments are available online.

If you are only participating by phone, you can contact National Grid at airpermit@GreenpointEnergyCenter.com or by telephone at (718) 749-9539 to obtain links or the information directly.

As indicated in the notice for tonights' hearing, verbal and written comments are being accepted tonight, this afternoon at this hearing and written comments will continue to be accepted by the Department until March 22, 2021.

Thank you.

JUDGE McBRIDE: Thank you, Mr. Watts. Before we hear from National Grid,

I am going to read the addresses for the submission of written comments for those of you who are attending over the phone. The mailing address for submission of written comments is Caitlyn Nichols, New York State DEC Region 2, 47-40 21st Street, Long Island City, New York 11101.

Again, for those of you who are over the phone, the mailing address for the submission of written comments is Caitlyn Nichols N-I-C-H-O-L-S, New York State DEC Region 2, 47-40, 21st Street, Long Island City, 11101.

The E-mail address is DEP.R2@DEC.ny.gov. Again, that E-mail address is DEP.R2@DEC.ny.gov.

And now we will hear from Glenn Goldstein, who is a representative of National Grid. Mr. Goldstein, as soon as you see your first slide, you can begin.

MR. GOLDSTEIN: Thank you. Good afternoon, Judge McBride, Regional Permit Administrator Watts, select members of DEC staff, elected officials, community members and the National Grid team.

My name is Glenn Goldstein, director of gas project management for National Grid. This presentation provides a brief summary of the Greenpoint vaporizers project and completed air permit application.

As a background, existing interstate gas pipelines that deliver gas to National Grid are unable to meet peak winter demand on their own without LNG support from the Greenpoint LNG facility. This facility has been in service since 1968, and its sole purpose is to liquefy and store gas from our system during low demand periods, typically over the summer, and then to vaporize that stored energy during the winter, infrequently, but during critical periods to support and balance the overall gas supply portfolio.

Typically, there are two instances when that occurs, either one, when extreme cold envelopes the region, 15 degrees or less, we need vaporization.

Two, when sources of upstream supply are interrupted, we need vaporizers. National Grid must be prepared for winter storms and weather extremes to ensure availability of gas

to customers for heating.

The vaporizers 13 and 14 project is part of the non-pipeline solution in the company's natural gas long-term capacity supplemental report with the state based on detailed analysis and extensive feedback from the public.

Here is a brief overview of the liquefaction and vaporization process at Greenpoint. Gas from our distribution system flows into the facility, where it undergoes a phase change from gas to a liquid through a process called liquefaction. That liquified gas is stored in tanks at a temperature of negative 260 degrees Fahrenheit. It occupies approximately one-600th the volume of natural gas. This is a very efficient means of stored energy, and it is this stored energy capacity that acts as a buffer to balance system demand and supply.

When the gas system operator identifies an imbalance, the liquid is sent through pumps into the vaporizers where the liquid is warmed and returned to a vapor before it is sent back out to the gas distribution

system.

The new vaporizers proposed for installation are very efficient with a 96 percent efficiency rating.

As the regional permit administrator indicated -- next slide, please -- as the regional permit administrator indicated, in May of last year, National Grid filed an application for the construction of two new vaporizers in the CNG transfer station. This subject filing is a downgrade from a Title V to a state facility permit. On the left is the existing attributes with a NOx cap of 47.4 tons, and on the right are the new permit attributes, a NOx cap of 24.9 tons.

National Grid has determined that the new vaporizers can be constructed in time to meet peak demand and the company has hence withdrawn the CNG transfer station from this application. The amended application no longer includes CNG injection in associated trucking.

Next slide, please. Thank you.

Over the past 12 years, approximately 70,000 new natural gas customers have connected to the National Grid system.

The company has a duty to serve its customers in all types of weather.

Critical to our serving our customers is effective contingency planning which avoids the need to shut down gas service, leaving customers in the cold. Vaporizers 13 and 14 do not increase annual output from the Greenpoint LNG plant or the frequency of plant operation.

The plant will be operated in conjunction with demand response programs to ensure continued service to our customers in Brooklyn and Queens, thereby ensuring reliability on the coldest days of winter.

This contingency planning is needed to manage and mitigate risk, thereby avoiding large scale outages that are very difficult to recover from, especially when combined with freezing temperatures.

The vaporizer 13 and 14 project do not increase LNG storage at the Greenpoint facility. The LNG capacity tank remains the same. These new units do, however, allow the facility to vaporize this capacity at a faster rate to meet demand with built-in redundancy in

the event of equipment failure.

In addition to the energy efficiency and gas conservation measures, this is one of the non-pipeline alternatives needed to meet peak demand pursuant to our obligation to serve.

Though proposed to be funded via the same rate case proceeding, vaporizers 13 and 14 and the project known as MRI, or Metropolitan Reliability Infrastructure, are independent. The current phases of MRI are completed and the next phase will not proceed without approval from the New York State Public Service Commission or PSC.

MRI allows the system to operate more efficiently and reliably by resolving a bottleneck in the gas distribution system, but does not add any additional gas supply.

Vaporizers 13 and 14 are needed with or without MRI to support customers by ensuring adequate supply during peak demand periods mentioned in this presentation.

In conclusion, as we transition away from carbon-based fuels, we must continue to maintain our infrastructure and reliably serve

our 1.9 million gas customers in downstate New York. Without the vaporizers, a significant number of customers in Brooklyn and Queens could be at risk of losing heating when they need it most. Gas outages may persist for an extended duration, measured sometimes in days or weeks, until pressure is restored in the system, and our commitment through this project reaffirms National Grid's requirement to ensuring the energy security for New York City while we undergo this transition to decarbonizing our energy future.

Thank you, and have a good afternoon.

JUDGE McBRIDE: Thank you. For those of you who are joining us late, that presentation was given by Glenn Goldstein from National Grid. We are now going to begin our public comment portion of the hearing. Judge Caruso will be calling each individual speaker when it is your turn to speak.

If you have joined us by the Internet, we have a speaker list and will know to unmute your line when it is your turn. If you have joined us by telephone only, when

Judge Caruso calls your name, I would ask that you please press Star 3 on your telephone. That raises your hand so Judge Caruso knows what line you are on and he can unmute your line.

Again, when we call your name if you have joined by telephone only, we will need you to press Star 3 on your phone, not pound 3, but Star 3 on your phone so that we know to unmute your line. I am going to read our first ten speakers so that you know the order we will be calling our first ten speakers. If I mispronounce any names, please accept my apologies.

Camilla Zhang, Delia Kulukundis, Elaine Weir, Alexandra Pagano, Miles McManus, Jonathan Farbowitz, Marzena Wolert, Annabelle Heckler, Martha Violante, Jerry Rivers.

Those are our first ten speakers. Go ahead, Judge Caruso.

JUDGE CARUSO: Thank you, Judge McBride. And I will apologize in advance for mispronouncing anybody's names. Just as a reminder, even though I'm calling your names and if your names may be on the screen if you

are on computer, please correct the pronunciation and state your name for the record. Thank you.

And I also remind you to speak as slowly and clearly as possible for the court reporter so she gets everything down accurately. And if you are affiliated with an organization, please state that as well.

So we are going to start with Camilla Zhang. I'm going to unmute you now.

MS. ZHANG: Hi. My name is Camilla Zhang and I am a born and bred New Yorker and a National Grid customer who is here to demand that the DEC rescind its negative declaration and deny National Grid's air permit.

I am originally from Jamaica, Queens, and have been living in north Bed-Stuy, just six blocks away from the North Brooklyn pipeline which National Grid euphemistically calls the Metropolitan Reliability Infrastructure. I am also four months pregnant, but even if I weren't, I would still be here supporting the lives and future of the black, brown and immigrant communities of

Brownsville, Bushwick, Greenpoint and my own neighborhood of Bed-Stuy because I believe if one community is hurting, we are all hurting.

National Grid talks about meeting increasing demand while ignoring the fact that according to the U.S. Energy Information Administration, since 2019, New York consumed less natural gas per capita than more than two thirds of the states. I, myself, only use electricity for heating and am moving over to an electric stove. This is the future and National Grid knows it.

But instead of investing in renewable energy or even taking advantage of HR 2, they are going with whatever is easiest and fastest to make more money for their shareholders.

We know they don't make profit from collecting monthly utility bills from rate payers. They make money from building unnecessary infrastructure that forces us rate payers to fork over $54 million over the next four years.

National Grid has segmented its huge fracked gas project to avoid required

environmental reviews under New York State law. The company's Greenpoint LNG facility is the destination point for its North Brooklyn fracked gas pipeline. National Grid is also seeking a variance from the city to transport LNG via truck to and from its Greenpoint facility, a practice that is currently illegal because it is so dangerous.

This claim of meeting peak demand is an illegal farce that violate SEQRA and the CLCPA. Under New York State environmental law, the DEC must examine these three connected projects, the Greenpoint expansion, the North Brooklyn Pipeline and the LNG facility expansion as a single project in order to determine the significance of environmental impacts.

In addition to violating the law, spitting in the face of their consumers, National Grid is literally adding more fuel to the fire. They know that this pipeline and LNG facility will carry fracked gas which emits toxic and carcinogenic substances, including highly dangerous PM2.5, which presents health risks to the communities already at risk from

Covid-19.

Children's small bodies are the most susceptible to this pollution, and I am carrying one of them. So again I urge the DEC to remember what they stand for and to rescind its negative declaration and deny National Grid's air permit.

Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Delia Kulukundis. If you are on the phone, would you press Star 3 to raise your hand so I can unmute you.

Elaine, you are unmuted. Go ahead.

MS. WEIR: Can you hear me?

JUDGE CARUSO: Yes.

MS. WEIR: My name is Elaine Weir and I am from Westchester County, New York. Originally I was going to talk about my daughter's struggle with asthma due to the air pollution in Westchester County and how this expansion of fossil fuel infrastructure will increase air pollution which, if allowed to take place, will result in injury to the health of many children and adults.

However, after hearing Glenn

Goldstein's presentation, I will address some of his concerns about the perceived need for more gas for National Grid customers.

First, New York State has already committed to not expanding fossil fuel infrastructure. To help with this effort, we must immediately have a moratorium for all the installation of natural gas in all buildings, commercial and residential. Also, gas appliances must not be installed or replaced.

Over time, these measures will further reduce the need for gas so that there wouldn't be these high peaks of gas.

Thankfully, there is now alternatives to gas such as heat pumps, which are very efficient. I just read an article saying air sourced heat pumps have advanced so much, they even work in Alaska.

The technology is already available and we need to use it. We must make our buildings more energy efficient. My husband and I have switched to energy efficient geothermal for heating and cooling.

Second, to reduce the concern about very cold days, National Grid needs to promote

a program like Con Ed's rush hour program. My husband and I have signed up for Con Ed's rush hour program for air conditioning. We couldn't do it for the gas because we switched to geothermal.

When Con Ed determines there will be -- the way it works is Con Ed determines when there will be a large demand for electricity, you know, when it's very, very hot outside. They set our thermometers a few degrees to reduce the need to use these peaker plants.

The same can be done with gas heating also. Con Ed also provides incentives to participate in the program.

If National Grid is truly concerned about cold days, they can purchase thermostats and install them free of charge for their customers, commercial and residential. They can provide incentives to participate in a program similar to Con Ed's.

To conclude, we need to reduce the use of gas for our climate's health as well as our people's health. The DEC has a responsibility to New Yorkers. They must reject natural -- National Grid's request to

expand this unnecessary fossil fuel infrastructure. In ten years, New York State will have far too many stranded assets from the fossil fuel industry. National Grid needs to focus on --

JUDGE McBRIDE: Your time is over.

MS. WEIR: I'm done. It's fine. Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Alexandra Pagano. I don't see Alexandra listed as being logged in. Alexandra, if you are on the phone and press Star 3, I can unmute you.

I don't see any hands raised for Alexandra Pagano. I will move on to the next speaker who is Miles McManus. I don't see Miles listed. Miles McManus, if are you on the phone and press Star 3, then I can unmute you.

Okay. I do not see a hand raised so I'm going to move on to the next speaker, Jonathan Farbowitz. I know Jonathan may have decided to move his time to the 18th, but I am calling his name nonetheless just in case he wanted to speak today.

I don't see Jonathan listed as being logged in. If Jonathan Farbowitz is attending by phone, if you press Star 3, I will unmute you.

All right. I do not see a hand raised. Our next speaker is Marzena Wolert, W-O-L-E-R-T. If Marzena is on the phone, would you press Star 3 to raise your hand.

I do not see a raised hand. So I am going to move on to the next speaker. I will also mention, if anybody is attending and they are not logged in under their own name and I call your name and you are on a computer, you can raise your hand on the computer, too. That raised hand feature is usually down in the bottom left-hand corner of your screen near the chat boxes.

The next speaker is Annabelle Heckler. I do not see --

JUDGE McBRIDE: Judge Caruso, the raised hand feature is on the right side of the screen.

JUDGE CARUSO: I take that back. It is the right. I was looking at the right and I must have said left. Thank you for

that clarification.

Annabelle Heckler, if you are on the phone calling in, would you please press Star 3.

I do not see any raised hands so I am going to go on to the next speaker. Martha Violante. I do not see Martha here -- I have a raised hand. Thank you. Hello, you are unmuted.

MS. VIOLANTE: Hello. My name is Martha Violante. I am a resident of East Williamsburg and a community organizer. I am here to demand that the DEC rescind its negative declaration and deny National Grid's air permits.

When I found out about the pipeline and LNG expansion about a year ago, I was horrified that even as someone active in the community, I had heard nothing about it. I have often found in my organizing that when a powerful entity is not transparent, it's for a reason.

I believe in this case it's because National Grid is well aware that by asking the community their opinion on this project, there

would be a resounding no.

No to the air quality in our region getting even worse, no to substantially increasing our greenhouse gas emissions, no to building this infrastructure through predominantly black and brown working class communities, and no to us paying for this.

I know this because I have spent the past year since finding out about the project, letting my neighbors know what those pipelines being installed on our street are for.

And every single person of the hundreds of people I have spoken with have been horrified. This is not what we want as a community. This is not forward thinking. This is not smart infrastructure.

As recent as March 6, there was a natural gas explosion and fire in Texas. Residents in the area needed to be evacuated. Most of the people I have spoken to in the community wouldn't even have known that they were in an evacuation zone. Let's take preventative measures before these incidents occur. Let's not do it in the first place.

National Grid has not been

transparent to the community on work they are doing or the risk that it poses to those of us that live here.

We have been through a very painful year. We are under too much economic stress to raise gas bills for infrastructure that is not only not needed, but a stress on the already stressed health of our community. We should be taking what we have learned from this year and bettering ourselves and our communities by being forward thinkers, by thinking about prevention.

We know natural gas is not the future. We know fossil fuel infrastructure is not the future. So let's start to think about the health and wellness of those in our communities because we have all witnessed what happens when we don't.

I demand that the DEC rescind its negative declaration and deny National Grid's air permit. Thank you.

JUDGE CARUSO: Thank you. I would ask you to lower your hand, too, please.

Our next speaker is Jerry Rivers. Jerry, if you are on the phone, would you

please press Star 3 so I may unmute you.

I do not see a hand raised so I am going to move on to the next speaker. The next speaker is Helen Roussel. I do not see Helen's name listed. So Helen, if you are on the phone and press Star 3, I will unmute you.

All right. I'm going to move on to -- the next speaker is Nicolas Shearman. And Nicolas, I am going to unmute you. You are all set.

MR. SHEARMAN: Yes. Just before I begin, for the record I wanted to correct the spelling of my first name. It's N-I-C-O-L-A-S, no H.

JUDGE CARUSO: Thank you.

MR. SHEARMAN: Thank you. Okay. Hi. My name is Nicolas Shearman. I live in Astoria, Queens, just a few miles north of Greenpoint Energy Center.

I testify today as a volunteer of Sane Energy Project and demand the DEC rescind its negative declaration and deny National Grid's air permits for the proposed LNG vaporizers.

National Grid's proposal to add two

new LNG vaporizers at Greenpoint Energy Center will increase emissions of air pollutants including particulate matter, volatile organic compounds and nitrogen oxides.

The air quality in our region does not comply with federal standards and this project would worsen existing air quality. This project also violates the greenhouse gas emissions, renewable energy and equity mandates of the Climate Leadership and Community Protection Act, CLCPA, by expanding greenhouse gas emitting infrastructure in a DEC designated potential environmental justice area community.

Prior to living in New York City, I grew up on Long Island. Since infancy, I have had asthma, have been hospitalized for it several times and recently received the COVID vaccine because of my condition.

It is known that poor air quality plays a role in asthma rates and down suits poor air quality due to fossil fuel use is unacceptable. The state should not be permitting new LNG vaporizers that would worsen air quality, especially not in black and brown communities that have faced years of

environmentally racist facilities like this one and related disproportional rates of asthma. Environmental justice communities need healing, not more fossil fuels.

Furthermore, the DEC's review of this project has gone against one of the strongest state environmental laws in the country, the State Environmental Quality Review Act, SEQRA, by segmenting permit review from National Grid's Metropolitan Reliability Infrastructure project, known locally as North Brooklyn Pipeline, which will feed into the Greenpoint Energy Center. The company's trucking variance application to the FDNY should also not be segmented from this, and it's also segmented by not assessing interconnected projects cumulative environmental impacts.

These are not independent unrelated activities, as National Grid claimed today. Rather, they are closely connected projects undertaken by the same company and constitute a whole action under SEQRA.

The DEC should have done a comprehensive review from the start with an

environmental impact statement and that's what I expect of the state agency responsible for protecting me and our communities.

I demand that DEC rescind its negative declaration and deny National Grid's air permits for the proposed LNG vaporizers. Thank you for considering this testimony.

JUDGE CARUSO: Thank you. And our next speaker is Meryl LaBorde. And I will unmute you in a second, Meryl. You are unmuted.

MS. LaBORDE: Hi. Thank you. My name is Meryl LaBorde. I am a long-time resident of Greenpoint Brooklyn. I live a few blocks from the proposed CNG facilities. As a member of this community, I am here echoing the voices of my neighbors demanding the DEC rescind its negative declaration and deny National Grid's air permits.

I am very concerned about the lack -- the continued lack of action. There are city and state regulatory agencies and private utility companies to fight the effects of climate change and work toward the stated goals of environmental justice, reduced emissions and

reliance on renewable energy sources.

As stated on the DEC website, environmental justice is the fair and meaningful treatment of all people regardless of race, income, national origin or color with respect to the development, implementation and enforcement of environmental laws and policies.

National Grid's proposed facilities and the North Brooklyn Pipeline are in direct opposition to the goal of environmental justice. And by their own calculations, National Grid's proposed facilities will greatly increase greenhouse emissions and air pollution in violation of the Climate Leadership and Community Protection Act.

Because of these negative environmental impacts of National Grid's proposed expansion, New York State requires enhanced public participation of affected environmental justice communities and, in violation of this requirement, National Grid has not been transparent with the public and has not allowed their input or participation.

DEC has allowed this by segmenting this project instead of looking at the

cumulative effect of the entire project of both the North Brooklyn Pipeline and the proposed expansion of the Greenpoint facilities.

I would like to just state again that I am here as one of the members of Greenpoint directly affected by this expansion of facilities to demand that DEC rescind its negative declaration and deny National Grid's air permits.

Thank you.

JUDGE CARUSO: Thank you. And our next speaker is Alexander Griffin. I will unmute you in a second here. Alexander, you are unmuted.

MR. GRIFFIN: Hello. My name is Alexander Griffin. I am a resident of Crown Heights, Brooklyn. I would like to thank the DEC for holding this hearing.

The Metropolitan Reliability Infrastructure, also known as the North Brooklyn Pipeline, is a pointless project created by National Grid solely to charge us more money and make more profits for themselves and their investors. The entire plan they put forth is based off of a need for energy that

just isn't there.

The IEESA released a study that said. That they did on this project -- and it reveals a lot of holes in National Grid's logic. First things first, this whole plan is based off of what they call a design day or a hypothetical day where temperatures would average zero degrees Farenheit. This is an extremely unlikely occurrence in general and, more specifically, downstate New York has not experienced a design day condition since 1934, which is 85 years ago. With the effects of climate change, it is even more unlikely that this will ever happen.

Furthermore, National Grid states that the need for energy will go up by 1.8 percent per year. This does not match up with Con Edison's findings, who actually project an increase of 1.1 percent over the next five years, and then after those five years, it would drop to a 0.5 percent increase. Clearly, National Grid is skewing their numbers based off of unreliable, outdated and incorrect information.

The second reason that we should not

be transitioning from a finite fuel source that is toxic to our environment to another fuel source that is even more toxic is because back in 2019, Cuomo signed the Climate Leadership and Protection Act.

And the goals that are stated in this act are all very great but we clearly aren't seeing any steps towards achieving this goal. Building a fracked gas pipeline under our city streets is not the answer.

Fracked gas contains methane, which is 86 to 101 times more worse for atmospheric warming and CO2.

New York is already the No. 1 methane emitter even without this pipeline. Furthermore, the gas that they hope to channel here comes from Pennsylvania which contains radon and is detrimental to asthma patients, children, pets and has a half-life of 1,600 years.

The gas, and even the by-product that is produced by it, which is called brine, is radioactive. In an article by The Rolling Stone, Ian Fairlie, a British radiation biologist, stated us bringing this stuff to the

surface is like letting out the devil. It's just madness.

So let's just cut to the chase. At the end of this, this is about money. National Grid will charge us, the people, to pay for this project.

They projected it would cost $185 million. The current budget has already exceeded that, which is $188 million. It is projected to cost half a billion dollars or could even cost a billion dollars to complete this project.

Wall Street has expressed concerns about continuing to invest in this as an energy source, as it is notorious for being costly and dangerous. As we will be transitioning to green energy based off of the act that I stated above, New Yorkers could be stuck paying for this pipeline that provides absolutely no benefit to anyone for years to come. Fossil fuels and toxic energy sources are becoming a thing of the past. National Grid knows this and, in order to try to stop this, they are attempting to entrench us in their industry which will only bring pain and suffering to the

people of New York.

Based on all this and much more which I cannot get into, we demand that the DEC rescind its negative declaration and deny National Grid its air permits to build LNG facilities on Newtown Creek in Greenpoint. Thank you.

JUDGE CARUSO: Thank you, and I am going to give the Maria Katchmar a second to make sure the clock is working. Okay. Thank you.

Our next speaker is Leyana Dessauer. I do not see Leyana listed on the -- amongst people that have logged in. So if Leyana is on the phone, if you would press Star 3, I will unmute you.

I do not see a raised hand so I am going to move to the next speaker, Callan Fish. If Callan is on the phone, please press Star 3 and I will unmute you.

All right. I do not see a raised hand so I'm going to move on to the next speaker. It's Cory Kantin. I do not see Cory listed as logged in. So if Cory is on the phone, please press Star 3 and I will unmute

you.

I do not see a raised hand so I will move on to the next speaker, who is Stephanie Doba. And I think Stephanie was going to submit in writing, but I'm just calling her name just in the event that Stephanie decided to call in. So Stephanie, if you are on the phone, please press Star 3.

All right. I'm going on to -- the next speaker is Jay Dalal, D-A-L-A-L, and if Jay is on the phone, please press Star 3 to raise your hand, and I will unmute you.

Okay. I do not see a raised hand so I am moving on to the next speaker, who is Jeanne McLaughlin. Again, I do not see Jeanne's name listed as a logged in user, so if Jeanne is on the phone, please press Star 3.

All right. I do not see a raised hand, so I am calling the next person who is Benny Woodard. Benny, you are unmuted. Please proceed.

MR. WOODARD: My name is Benny Woodard. I live in Bed-Stuy and I am a member of the No North Brooklyn Pipeline Coalition which represents 11,000 Brooklyn residents.

Thank you to the DEC for the opportunity to voice my opinion today. I am calling on the DEC to rescind their negative declaration and deny National Grid's permit application.

JUDGE McBRIDE: Sir, I'm just going to give you a couple of extra seconds but I'm going to ask you to slow down because your court reporter will not be able to take your remarks if you read that fast. So we'll give you a couple of seconds over your three minutes but I'm asking you just to slow down for our court reporter's sake.

MR. WOODARD: Okay. Should I start over?

JUDGE McBRIDE: No, that's okay. You can continue.

MR. WOODARD: I will first outline two key process issues. Firstly, the DEC conducted a segmented review of the proposed Greenpoint expansion as defined by SEQRA, the State Environmental Quality Review Act. The proposed expansion must be considered in terms of the larger whole action that includes all five phases of the MRI pipeline and Greenpoint LNG trucking station.

In their opening presentation, a National Grid representative stated that "vaporizers 13 and 14 and the MRI are independent projects."

This is a flat-out lie. In their response to discovery request No. DPF 1091 dated April 10, 2020, National Grid clearly states the interdependent nature of these two projects. Secondly, the DEC has erroneously and without substantiation determined the Greenpoint expansion to be not subject to Commissioner Policy 29.

CP 29 exists in order to protect potential environmental justice areas such as those that will be directly and detrimentally affected by the proposed expansion. This expansion, particularly when considered within the scope of the whole action, cuts through the heart of Brooklyn's DEC designated PEJAs and is, therefore, subject to a full environmental assessment and coordinated review. This has not yet happened.

The proposed project will have a significant adverse impact on the environment and on public health. National Grid's own

reported projections predict significantly increased emissions of potent air pollutants and greenhouse gases such as nitrogen oxide, carbon dioxide and methane resulting from the Greenpoint expansion.

These projections are dramatically underestimated. To be clear, these increased emissions are more than percentages on a table in a document. Their implication is one of violent bodily harm to thousands of human beings. Hazardous air pollutants can lead to cancer, decreased fertility and neurological issues and all this in an area that has been exposed to unsafe levels of air pollutants for decades due to its industrial history.

The ceaseless burning of potent greenhouse gases like carbon dioxide, methane and nitrogen oxide have left us spiraling into a terrifying climate crisis. National Grid represents an industry that is suffocating under the weight of its own extreme glut.

Their representatives stand in front of us and extol their company's legacy of, quote, safety and reliability, providing their customers with, quote, essential gas service

that everyone, quote, needs and wants. News flash for you: Nobody needs fracked gas. Nobody wants a service whose reliability is predicated on the destruction of human life and the jeopardization of a habitable future for their children. What a manipulative claim to make. How dare you stand in front of me and my community and lie to us.

People don't need gas. They need sustainably sourced thermal energy. You, National Grid, are sitting on a crumbling industry that you, the manipulator, the abuser, the gaslighter, pun intended, have created by systematically locking us, your, quote, valued customers, into a suicidal reliance on fossil fuels.

The game is up. You are not fooling me. You are not fooling any of us. I restate my request to the DEC to rescind their negative declaration and deny National Grid's permit application.

Thank you very much.

JUDGE McBRIDE: Thank you. And I'll remind all speakers, and I know that this is an emotional issue, but I would just

ask that we please remain civil during our comments. Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Luke Ohlson. I do not see Luke logged in. So if Luke Ohlson is on the phone and you press Star 3, I will unmute you.

I do not see a raised hand so I am going to call the next speaker, Claire McLeod. Claire, if you are on the phone and press Star 3 to raise your hand, I will unmute you.

Okay. Our next speaker is Monica Hunken. Monica, I am unmuting you. You are unmuted, Monica.

MS. HUNKEN: Hi, I reregistered for the 18th.

JUDGE CARUSO: You want to speak on the 18th, that's fine.

MS. HUNKEN: Thank you.

JUDGE McBRIDE: Judge Caruso, Miles McManus is now ready to give his statement.

JUDGE CARUSO: Okay. Hold on. I will just make a note about Monica moving to the 18th. Thank you.

Miles, you are unmuted.

MR. McMANUS: Hello. I my name is Miles McManus. Thank you for taking my testimony.

I live in Congressional District 1. I am here to ask that you rescind the negative declaration and deny the air permits for National Grid's proposed liquid natural gas vaporizers.

And blah, blah, blah, here we are once again and I find it absolutely disgraceful. Why? Because I don't like being lied to either by National Grid, which we are getting used to, or by our top elected officials, whose job is to protect us.

The good news is that New York City and state both have passed nation-leading climate legislation, and yet somehow every couple months here we are again and there is a new fossil fuel project on the docket. So I have to ask the DEC, the PSC, Governor Cuomo, Mayor de Blasio, anyone else who will listen, what are we doing here again?

You have seen the studies proving that New York City does not need and New York State do not need any new fossil fuel

infrastructure. You know that it's dangerous and you know that we don't want it.

You have already denied other National Grid requests for similar reasons. So I have to ask, are you seriously considering this proposal? Are you really going to allow fracked gas to be trucked through New York City? What could possibly go wrong?

Are you really going to import fracked gas into New York State after you, yourself banned fracking in the state, and are you really going to prioritize a business-friendly image, quote/unquote, and corporate funders over our clean air, clean water and livable future?

Are you really going to sell out environmental justice communities that are already hurting and need your help? You wouldn't poison our communities and waste taxpayer money just so the executives of National Grid can keep their bonuses, would you? I didn't think so. So why do we keep doing this?

Here is an idea; why don't we shut down National Grid's endless groundhog day of

criminally deceptive fossil fuel proposals instead.

Please, deny the air permits, ban all new fossil fuel infrastructure in New York State and focus the apparatus of government where it belongs, moving New York to a zero emissions economy as rapidly as possible.

Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Kevin LaCherra. I do not see Kevin logged in. If Kevin is on the phone, please press Star 3 and I will unmute you.

Okay. Going to the next speaker. It's Polina Riabova. And Polina, I am unmuting you.

MS. RIABOVA: My name is Polina Riabova. I am here to demand that the DEC rescind its negative declaration and deny National Grid's air permit. I am testifying as a resident of Bushwick, Brooklyn, one of the neighbors that is affected by the illegal racist fracked gas pipeline that was secretly vote by National Grid through predominantly low income black and brown communities, the same company which is proposing to expand their LNG

facility at the apex of this pipeline in Greenpoint.

The narrative they are perpetuating about these two projects being unrelated is completely false. Not only is LNG trucking illegal in New York, but LNG is extremely dangerous and volatile and very few firefighters know how to put out LNG-caused fires.

A lot of them did not put them out and the fires are usually left to burn out on their own.

With the Greenpoint LNG facility being located on a flood plain, I am sure you can imagine the potential disastrous effects of storing this explosive and dangerous fuel at an outdated facility that can flood at any moment. For the preservation of our planet and to fight against human extinction, also known as climate change, New York City and state should be putting all of our resources into movement away from fossil fuel infrastructure dependency which harms predominantly black and indigenous communities of color who are already facing a long history of environmental racism.

Denying this permit is one of the ways you can move toward green renewable sustainable energy and move away from environmental racism and the continued destruction of health in the city's most vulnerable communities.

As you may or may not have noticed from my voice, I am currently sick. Instead of resting and taking myself, I have to be at this hearing because I, just like others, cannot trust that the city will make the right decision on their own. It is incredibly shameful that New York City residents can't rely on their government to protect them during a global pandemic when many of us are dealing with crises of health, loss of loved ones and serious financial trouble.

Particularly so, the black and brown communities National Grid's pipeline is running through, who are also expected to pay for this $54 million LNG expansion project with rate hikes during, again, a global pandemic.

It is not lost on me that the panelists of this hearing have chosen to leave the videos off and are not allowing us to see

the names of other community members in attendance, nor their faces, the way we would be able to at a normal public hearing. It is not lost on me how the DEC tried to blindside community members by rearranging the dates of this hearing at the very last minute, making it as hard as possible for working people, whom these decisions most affect, access. Your cowardice has been noted.

Nonetheless, you must not allow National Grid, a company that is based in the UK, to make environmental and health decisions on behalf of New York State residents with millions of dollars of profit.

Once again, I demand that the DEC rescind its negative declaration and deny National Grid's air permit. Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Holly Porter-Morgan. I do not see Holly listed as logged in. If Holly is on the phone, please press Star 3 and I will unmute you.

I do not see any raised hands so I'm going to call the next speaker, and it's Ada Tolla. And Ada, I am unmuting you. I do know

you were going to move to the 18th, but you -- if you wanted to speak now, you may.

MS. TOLLA: I can speak now. My name is Ada Tolla. I am an architect with leave and raised a family in East Williamsburg for the past 20 years right by the North Brooklyn Pipeline path. I am here to demand that DEC rescind its negative declaration and deny National Grid's air permit for the Greenpoint new vaporizers.

As a Brooklyn resident, I need to assert how important it is at this moment to move toward green sustainable energy. We cannot afford to support and pay for National Grid for new infrastructural work that is still rooted and anchored in fossil fuel economy and in fracked gas.

The two new LNG vaporizers would cost rate payers $54 million, money that must instead be invested to transition to clean and renewable energy.

I watched the construction work of the North Brooklyn Pipeline progressing right by my place in my neighborhood and learned it was a pipeline for fracked gas. The city is

described by National Grid as the MRI, or national gas reliability infrastructure.

I explored the scope of the project both on paper and in actual space. As an architect who is directly invested in my city and its rich humanity, I personally followed the path of the North Brooklyn Pipeline from its central point in Brownsville to Bed-Stuy Bushwick, East Williamsburg all the way to the National Grid depot in Greenpoint, the site of the new vaporizers.

I literally followed this underground line, map in hand, precisely to look at the line of life on the same path above ground.

My question was straightforward. What does this hidden infrastructure directly affect? I pause, scanning the homes, the parks, the many playgrounds, the many schools, the many community gardens, the many churches, the markets.

I paused and reflected on the great care that shapes our places and communities as they rest above ground, unaware of being juxtaposed to the invisible path of the new,

highly dangerous, highly backward polluting, environmentally irrational, socially unjust infrastructure.

I urge DEC to consider with the same care this overlay, its strategic and deceiving fragmentation park as highlighted by many. I urge DEC to consider all of our voices, the voices of our communities leading the longest line. We demand higher forms of respect.

We cannot be fooled by the separate naiveties of the vaporizers or by the unproven need for additional gas. We cannot be manipulated by double naiveties distinctly served to shield financial greed and in an aggressive short-sighted action.

I urge you seek to honor New York State sustainable goals outlined by the CLCPA and rescind its negative declaration and deny the air permit for the vaporizers.

JUDGE CARUSO: Thank you. Our next speaker is Helena Yang. I do not see Helena logged in. So if Helena is on the phone, please press Star 3.

Okay. I do not see a raised hand so I will move on to the next speaker, Casey

Breen. I am unmuting you.

MS. BREEN: Hi, can you hear me?

JUDGE CARUSO: Yes.

MS. BREEN: Great. My name is Casey Breen and I am here to demand that the DEC rescind its negative declaration and deny National Grid's permit. I am a student at the City College of New York currently working on a Master's of Landscape Architecture at the Spitzer School.

I actually became aware of this project through my Master's program. Our focus this semester is New York City's energy system and the North Brooklyn Pipeline and Greenpoint LNG expansion were identified as situations within the purview of landscape architects.

I am not going to repeat all the negative aspects of this project, not because they are not important, but because we all know them already. I am here to say that we don't have to accept them, the pollution, the asthma, the racism as unfortunate but unavoidable side-effects of our energy system.

If you think it has to be this way,

it doesn't. Designers are working to make these systems just, equitable, empowering and sustainable.

Pipeline and natural gas infrastructure can be retrofit to support geothermal energy. In fact, it is already happening in Boston. There is simply no reason to expand infrastructure that isn't working for us when the building blocks for transition to renewable energy are already in place.

Glenn Goldstein mentioned winter storms as a reason for the necessity of the Greenpoint expansion. Increased irregular and extreme weather patterns that are used to justify projects like these are the direct result of fossil fuel emissions in the first place. To accept this reasoning is to fall victim to a relentless circle of fossil fuel expansion that will never lead to a decarbonized energy sector.

I would ask the panelists here today to really consider where they would want to live proximate to this project we're discussing and why they're imposing that fate on other people when we have other options readily

available.

Thank you for your time.

JUDGE CARUSO: Thank you. Our next speaker is Jesse Phillips-Fein. I don't see Jesse logged in. So if Jesse is on the phone, please press Star 3.

And I do not see a raised hand. Our next scheduled speaker is Luke Szabados. I do not see Luke listed. He is logged in so if Luke is on the phone, please press Star 3 and I will unmute you.

I do not see a raised hand. Our next speaker is Sarah Durand and I do not see Sarah as being a logged-in user. So if Sarah is a call-in user, please press Star 3.

Okay. I do not see a raised hand. So our next speaker is Lauren Rapp. Lauren, I am unmuting you.

MS. RAPP: Thank you. My name is Lauren Rapp. I live in Bushwick and I am one of the many people in Brooklyn that would be affected by this project. I encourage the DEC to rescind its negative declaration and deny National Grid's permits.

I would like to start with

statistics. If approved, there will be 63 percent increase of carbon dioxide emissions, 45.4 percent increase of methane emissions, an increase of 11 -- of another 11 known air pollutants, a 45 million cost increase from two LNG vaporizers that would be put on the backs of rate payers.

I would like to make it clear no one has proposed these permits or projects to our community. All community organized groups have been uninformed of this issue, not the business attempting to put us at risk. Our communities' demand for gas has only decreased in the last ten years and only through new infrastructure can National Grid increase profits.

If we were asked for our consent to this project, we would wholeheartedly say no. We did not consent to our community being a sacrifice zone. We do not consent to being in the path of potential explosions or leaks. We do not consent to being close to more toxic chemicals, and we do not consent to allowing this proposal to put our lives at risk.

I hope our leadership will agree to prioritize the safety of north Brooklyn which

is comprised mostly of brown and black and working class people, and to rescind its negative declaration and deny National Grid's air permits. Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Megan Lazaros. Megan, I do not see you are logged in. If you are on the phone, please press Star 3.

JUDGE McBRIDE: We have a raised hand, Judge Caruso.

JUDGE CARUSO: That is from our previous speaker, Lauren Rapp. There we go. Now I see it. You are unmuted.

MS. LAZAROS: Hello. Can you hear me?

JUDGE CARUSO: Yes. Please proceed.

MS. LAZAROS: Hello, and thank you to the DEC for holding these hearings. My name is Megan Lazaros. I am born and raised in New York and I have been a resident of Greenpoint for over 13 years, and I vehemently oppose National Grid's fracked gas pipeline and proposed expansion of their LNG and CNG storage facility.

I am five month pregnant and was so relieved when New York banned fracking and when Mayor de Blasio announced plans for huge emission reductions in New York City by 2030. These are actually really big reasons why my partner and I finally decided to have a baby, because it felt like for a moment our government was truly taking the steps it desperately needs to address our climate crisis.

And with National Grid trying to sneak and bulldoze their way through this process, and seemingly close to getting away with it without a huge uproar from the community, I feel so much of that hope slipping away.

I had to find out about this project from a local advocacy group, not by a government agency or from National Grid. We know this is a dangerous project that puts a physical and financial burden on the people of the communities along the pipeline. And I am urging you today to do right by our people and please, please, deny these permits.

I am afraid for myself, my family,

my community and the future of New York City. And I'm angry. I am angry that a project like this will only lock us further into dependency on fossil fuels when we should be doing the exact opposite.

I was listening to the hearing last night, and I've been listening to all the speakers today as well, and everyone here has really done their research. I am so impressed by everybody. And they've had to do their research. The everyday people are up against National Grid, a huge corporation with lots of money, and we, we are expected to become scientists ourselves, know the ins and outs of every study and know all the steps and facts. And for our sakes, I would like to see a corporation like National Grid be under the same scrutiny that the people of this community are under.

Please, please, scrutinize the hell out of this project for us, for the people. Thank you.

JUDGE CARUSO: Thank you. I will ask you to lower your hand now, please.

Our next speaker is Michael Abrusci.

I'm unmuting now, Michael. Please proceed.

MR. ABRUSCI: Thank you. Good afternoon. Thank you for allowing me the opportunity to speak.

My name is Michael Abrusci. I live in Queens, and I'm submitting the following testimony on my own behalf as a concerned New Yorker.

I am asking the DEC to please rescind its negative declaration, rescind its negative declaration -- sorry, deny National Grid's air permit and oppose the expansion of the Greenpoint LNG facility.

This is an environmental and public health crisis. Climate change is, obviously, the greatest environmental threat facing the planet, not to mention we are already facing a public health crisis, the pandemic.

Expanding fossil fuel infrastructure like National Grid's proposed expansion of the Greenpoint Energy Center will most certainly lead to a future of much more greenhouse gas pollution in New York.

If left unattended, it is going to have devastating impacts on New York's economy,

infrastructure, public health, coastal areas and natural ecosystems. LNG would devastate public health and jeopardize the safety of neighboring residents. We should take this opportunity to displace GHG emissions and not add more.

I ask that the DEC also take the global methane emissions that are traced to the source of LNG into consideration. The methane that is emitted and leaked through the whole life cycle of natural gas extraction, distribution and burning will exacerbate the global climate crisis at a time when we must fully commit to keeping fossil fuels in the ground and transition to 100 percent renewable energy.

New York State adopted into the law the CLCPA which establishes goals of net zero greenhouse gas emissions in New York by 2050 and a hundred percent carbon-free electricity by 2040.

Clearly, expanded fossil fuel infrastructure will make New York's chances of meeting these goals impossible, which is why it is essential to adopt policies that mandate new

construction be all electric and to eventually move existing buildings towards electrification.

The Greenpoint LNG facility is grandfathered in and wants to expand, which means bringing a whole lot more of this stuff into Brooklyn.

With this application, the facility also proposes to install two new compressed natural gas injection heaters. It currently operates at three.

I am urging the DEC to stop the expansion of all newly proposed fossil fuel infrastructure projects like the proposed Greenpoint LNG facility expansion. Let us not forget the tragic incident in Bloomfield, Staten Island in 1973 which serves as a reminder of how the transportation storage of LNG is extremely dangerous.

New York State needs to meet the asserted energy needs of our residents through efficiency measures, demand management, electrification and renewable energy production.

I am once again urging DEC to

rescind the negative declaration and deny National Grid's air permit. That is all. Thank you for your time.

JUDGE CARUSO: Thank you. Our next speaker is Jeff Strabone. I don't see Jeff logged in, so if Jeff is on the phone, please press Star 3 and I will unmute you.

I do not see a raised hand so I am going to call the next speaker, Zachary Koshgarian. I don't see Zachary listed as logged in. If Zachary is on the phone, please press Star 3.

I do not see a raised hand. I will move to the next speaker. Emilio Paesano.

MR. PAESANO: Good afternoon. My name is Emilio Paesano, and I demand the DEC rescind its negative declaration and deny National Grid's air permit.

I am a supervising attorney with Mobilization For Justice, Incorporated. I am a tenant on the Williamsburg Greenpoint border and I'm a National Grid customer.

I am giving public comment today because I practice eviction defense and enforce housing standards on behalf of tenants living

in buildings owned by the New York City Housing Authority, and I am terrified about the health and well-being of my black and brown clients, friends and neighbors who live at the Cooper Park Houses, a NYCHA development a few blocks away from my apartment.

National Grid's proposed LNG expansion would run right behind and up against the Cooper Park Houses and would increase emissions of air pollutants, specifically particulate matter, volatile organic compounds and nitrous oxides, and would substantially increase greenhouse gas emissions, taking into account the full life cycle of fracked gas as is required by New York State climate law.

Now, it is public knowledge that the black and brown communities surrounding the Greenpoint LNG facility have long suffered the effects of toxic air pollution and severely contaminated soils and waters.

It is also public knowledge that children living in NYCHA developments overwhelmingly suffer from asthma and that toxic air pollutants cause and exacerbate asthma, among other life-threatening health

conditions.

For these reasons, National Grid is asking the DEC to not just rubber stamp environmental racism; in fact, National Grid is asking the DEC to facilitate environmental racism and to inflict further harm on the very communities that desperately need healing, not more harm.

I do not want this. As a National Grid customer, I am appalled. I do not want to subsidize environmental racism. So, again, I demand that the DEC rescind its negative declaration and deny National Grid's air permit. Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Patricia Ross. I do not see Patricia on the log-in. Patricia, if you are on the phone, please press Star 3 and I will unmute you.

I don't see a raised hand so I am moving to the next speaker. Konstancja Maleszynska.

MS. MALESZYNSKA: Can you hear me?

JUDGE CARUSO: Yes, we can.

Please proceed.

MS. MALESZYNSKA: Thank you. My name is Konstancja Maleszynska. I live in Greenpoint, just over a thousand yards from the National Grid depot.

I grew up in Poland and lived in the plume of the radioactive cloud from the Chernobyl power plant in 1986. I remember being made to drink Lugol's iodine, which was supposed to help, and I remember the terror we felt breathing the air around us.

As many others before me testified, I live and work in this front line community and I lose the sleep at night thinking about the obstacles we as community members overcome on a daily basis to live more sustainable lives while the powerful few block avenues to a truly regenerative future.

Note that if we quantified the amount of hours spent on these calls by everyone tuning in and waiting to speak, it would be far more than National Grid spent engaging our community.

I also work for a large Brooklyn developer as a sustainability consultant, so I

think through these issues professionally as well, trying to reconcile the state's climate goals with the reality of being locked into outdated fracked gas infrastructure.

In the Climate Leadership and Community Protection Act, the state has committed to 85 percent reduction in statewide greenhouse gas emissions by 2050. Additionally, the state's clean energy standard provides half its electricity will come from renewables by 2030.

However, gas combustion accounts for 34 percent of New York State greenhouse gas emissions. So its continued expansion flies in the face of the state's climate goals.

Gas will soon follow coal and now oil in rapid devaluation into a stranded asset with former fossil fuel giants such as BP announcing net zero commitments, cutting gas and oil from their portfolios and increasing renewable investments.

Several cities in California have passed laws to ban natural gas hookups in new buildings, taking into consideration that those slow to voluntarily switch over to electric and

alternatives are likely to be low income neighborhoods of color.

So in our neighborhood and everywhere, unnecessary upgrades to existing gas infrastructure run counter to our climate goals and climate goals of the state and divert funds which could support greater renewable investment.

So please deny the air permits, rescind the negative declaration, no to the pipeline, no to any expansions and solidarity with frontline communities everywhere.

JUDGE CARUSO: Thank you. Our next speaker is Kate Macaluso. I do not see Kate listed as a logged-in user, so if Kate is on the phone, please press Star 3.

I do not see her. I have a Howard that has raised a hand. I am unmuting you. Are you speaking on behalf of Kate?

Very good. Someone raised their hand. I tried to unmute them and they disappeared. Bear with me.

Our next speaker is Sandye Renz. I don't see Sandye as a logged-in user so if Sandye is on the phone, please press Star 3.

JUDGE McBRIDE: Judge Caruso, I think we need to mute out -- never mind, Howard has unmuted.

JUDGE CARUSO: I just did it. I don't see Sandye Renz.

So our next speaker is Laura Shindell. Laura, I am unmuting you.

MS. SHINDELL: Hello. My name is Laura Shindell. I am a New York organizer with Food & Water Watch. We represent over a hundred thousand people throughout New York State.

New York State cannot claim to be leading the country in climate action while also considering building new fossil fuel infrastructure. Fighting climate change is directly incompatible with the development of LNG new vaporizers and pipelines.

National Grid's proposal spells climate disaster. Methane, the primary component of fracked gas, heats the atmosphere 86 times more effectively than carbon dioxide over 20 years.

To make matters worse, LNG is estimated to have 30 percent higher emissions

than regular fracked gas because of the energy-intensive process to super cool it into a liquid and then heat it back up into a gas.

These high emissions should make National Grid's proposal dead on arrival because they are antithetical to the goals mandated by law in the CLCPA. Not only are the impacts of this horrible for our climate, but they are disastrous for people's health.

In a year when we have had thousands of New Yorkers die of COVID, a respiratory disease, it is criminal to even consider adding more pollutants to our communities that cause asthma, cancer and lung disease.

The DEC must make every single effort to clean up our air in communities, especially the black and brown communities that have disproportionately suffered from COVID, pollution and other systemic health inequalities.

Not only would this proposal cost us our health and climate, but it would cost $54 million in rate payer dollars. That is unconscionable, especially when you consider that analyses by National Grid and the DEC show

that demand for gas is going down, not up.

It is entirely hypocritical for Governor Cuomo to decry Republicans' refusal to accept climate science while also considering policies that ignore the scientific evidence of the harms of fracking and fossil fuels. As Greta Thunberg said, shame on you.

Governor Cuomo and the Department of Environmental Conservation must rescind its negative declaration and deny National Grid's air permit. You must stop the LNG vaporizers and all fracking infrastructure that you have authority over.

There is no other moral option. There is no other scientific option. And it's clear from the overwhelming opposition to this project that there is no other political option.

Deny the air permits, stop all fracking in New York. Thank you.

JUDGE CARUSO: Thank you. And our next speaker is Heidi Schubert. I do not see Heidi listed. And I also note that people in the chat want to see the list of the next speakers, Judge McBride. So Heidi Schubert, if

you are on the phone, please press Star 3 and I will unmute you.

I do not see a raised hand. Our next speaker is Andrew Olshevski. I do not see Andrew listed among the logged-in users. So if Andrew could -- if you are on the phone, press Star 3 to raise your hand, I will unmute you.

Okay. I do not see a raised hand. Our next speaker is Abigayle Reese. I do see someone logged in as Abigayle so I will unmute you.

MS. REESE: I registered for the next one.

JUDGE CARUSO: For the 5:00?

MS. REESE: Yes, on March 18th.

JUDGE CARUSO: Oh, for March 18th. Very good. I will move you to that. Thank you. I didn't cross-check the most recent people that have moved over, so my apologies.

Our next speaker is Ruhan Nagra. I don't think I see -- I had not seen Ruhan's name. If Ruhan is calling in, please press Star 3.

Our next speaker is Elizabeth Himmel. Elizabeth, if you are called in, please call Star 3, raise your hand.

I do not see a raised hand so I'm going to call the next speaker. Andres Chang. I am going to unmute you.

MR. CHANG: My name is Andres. I am a Greenpoint resident and a researcher at Science Based Targets, which is a corporate climate standard for companies like National Grid. I am testifying on behalf of my family, my neighbors and the north Brooklyn community, not my non-profit, but I do bring that expertise and objectivity to this hearing.

National Grid wants you to believe that they understand the threat of climate change and are planning accordingly. In their presentation before the call, National Grid mentioned the need for this gas infrastructure in the, quote/unquote, transition to a low carbon future.

We have no reason to believe National Grid's intention here. National Grid has a history of environmental failures and does not have a climate strategy that is

aligned with New York's own climate goals with this specific project.

We know that expanding gas infrastructure right now is in direct conflict with New York's legally binding climate goals. There is compelling evidence that the project is illegally segmented.

Some speakers here have also spoken about the toxicity of this project, how it was practically designed to inflict harm on the same communities that utilities have poisoned for decades. These communities have spoken out time and time again and have been ignored.

Most of us show up to a job every day. My job is to get companies to reduce their emissions. National Grid has several lawyers here, and their job is to protect their toxic business.

I am speaking to the DEC primarily, and your job is to ensure that energy infrastructure projects here are aligned with state law, that they are not blocking us into a poisonous and toxic future and to hear us constituents of New York.

I am asking you, please rescind the

negative declaration. You have heard the evidence. You have heard your constituents. Stand with your constituents. Do your job. Stop these projects.

Thank you.

JUDGE CARUSO: Thank you. Our next speaker is Jackson Perrin, and I know Jackson is logged in. So Jackson, you are unmuted.

MR. PERRIN: Thank you for the DEC for letting me speak today. My name is Jackson Perrin. I am an artist and a teacher and a retail worker, and I have the privilege of living in Bushwick, Brooklyn, six of the seven years of my current residency in New York City. And while living in Bushwick, I have felt very much a part of my neighborhood.

Much like a lot of you, I'm sure, I have my favorite bodega and coffee spot and other local businesses, and I know the people that work at these places by name. I am interested in their passion and goals, and I also literally have watched their kids grow, some to the point of being workers at their parents' shop.

So I feel a deep obligation to be here and speak on their behalf and for those of my neighbors in Greenpoint and affected neighborhoods because I feel a lot of this information has been grossly unrepresented and made public. I am asking the DEC to rescind its negative declaration and to deny National Grid's proposed air permit.

Like the previous speakers and ones you will hear after me, I have equipped myself with the facts of what is going on, but this air permit has been illegally segmented from a larger expansion and that this alone needs to be reviewed. Additionally, this permit would have these LNG vaporizers built on the already contaminated site of Newtown Creek that was obliterated by free-rein disposal of unwanted industrial byproducts and waste all up until the latter half of the 20th century.

It is clear that there are risks with having the structure built, but why are we taking these risks for a facility that has no effect in improving the quality of life for the residents of Brooklyn but, in fact, does the opposite and threatens their health with

poisonous nitrogen oxides and additionally directly costs us financially?

So granting this permit would be jeopardizing the quality of life of the residents in this area and stealing the opportunity for future health and safety for the current and future generation of adults and children who live in these neighbors. It is a cash grab with negative consequences that have no effect on the people profiting but all on those that reside in the affected area.

So I just want to say thank you for listening, and that's my comment.

JUDGE CARUSO: Thank you. Our next speaker is Demetrios Elias. I don't think I saw Demetrios listed as a logged-in speaker. So if you are on the phone, please press Star 3 and I will unmute you.

I do not see a raised hand. I am going to call the next speaker Sabine Teyssier. I do not see Sabine logged in. So if you are calling in, please press Star 3 and I will unmute you.

I do not see a raised hand so I am going to call Robert Wood, and I do not see

Robert's name as logged in.

Hold on. Stephen Chesler has raised their hand. I'm not sure why Steven has raised his hand. You are -- he is scheduled to speak but -- very soon. So back to Robert Wood, if you are on the phone, please press Star 3.

All right. I am going on to the next speaker, Charlotte Phillips. If Charlotte Phillips is calling in, please press Star 3 and I will unmute you.

All right. I'm going on to the next speaker, Clairmont Chung. If Clairmont is on the phone, please press Star 3 and I will unmute you.

JUDGE McBRIDE: Judge Caruso, Clairmont is on the list of registered attendees.

JUDGE CARUSO: For some reason, Clairmont ended up out of alphabetical order.

MR. CHUNG: The notices and the times, you know, that's it, so I can intelligently -- lack of prosecution. I know the victims that were there the last time, and my client was not, in December.

Then I came in February, both my client and I. I don't know -- we couldn't get in.

JUDGE McBRIDE: Judge Caruso, we should mute Clairmont.

JUDGE CARUSO: Clairmont, you are unmuted. Do you want to start your comments?

MR. CHUNG: Right. You know, first that's it, that is all, that they were paid the money.

JUDGE McBRIDE: Judge Caruso, that is another call.

JUDGE CARUSO: Okay. He's not commenting to us. He is carrying on other business. Very well. We can try back.

Alex Beauchamp. And I am unmuting you. Alex, you are unmuted.

MR. BEAUCHAMP: Can you hear me?

JUDGE CARUSO: Yes.

MR. BEAUCHAMP: Great. Thanks. Thanks so much for the opportunity to speak today.

I'm Alex Beauchamp. I am the

northeast region director at Food & Water Watch. So we are a national environmental group that fights to move the country and the state off fossil fuels. Here in New York, we represent over a hundred thousand people throughout the state.

I am here first and foremost today to demand that the Department of Environmental Conservation rescind its negative declaration and deny National Grid's air permit.

As many others have noted today and I assume last night, if we are being honest with ourselves, we all really know that we need an immediate halt to any and all new fossil fuel infrastructure to have any hope of avoiding truly catastrophic effects from climate change and to meet the goals that we have now enshrined into law in the Climate Leadership and Community Protection Act, the CLCPA.

But, you know, maybe more importantly, at least to me, as the father of a two and a half year-old, this urgency is a lot clearer to me that it's ever been before, right? I used to think of abstract dates when

I thought of climate change. You think of 2030 or 2050.

I don't do that anymore, right? I don't think about 2030. I think about what our world will look like, what our world will be like when my son is 12. And if I'm honest, I really try to stop thinking there because on our current trajectory, I can't even really bear when I start thinking about 2040, 2050 when he's in his 20s and 30s.

So we have to have an aggressive plan to end the era of fossil fuels both here in New York and around the globe. And yet, over and over again in proceedings like today's hearing, the State of New York seems to be continuing business as usual, continuing routine approvals of fossil fuel infrastructure that both individually and collectively are killing us, that must stop and it must stop now.

National Grid's reckless proposal to build two new LNG vaporizers will increase emissions of harmful air pollutants including particulate matter, volatile organic compounds and nitrogen oxide. And as we all know, air

quality in our region already fails to comply with federal standards. This will make that air worse.

Moreover, the project will worsen greenhouse gas emissions. The company's own calculations show a huge 63 percent increase in carbon dioxide emissions, 45 percent increase in methane and, when the full life cycle of fracked gas is taken into account, as it must be now by law, those emissions will absolutely be higher.

So at a time when the state is struggling to meet its own emission reduction goals, this project ought to be a complete non-starter.

To put it another way, if the Cuomo administration is at all serious about the climate goal he signed into law, you must reject this project. I urge you once again to rescind the negative declaration and deny National Grid's air permit. And thank you so much for the time.

JUDGE CARUSO: Thank you. Our next speaker is Shiv Soin, S-O-I-N. I do not see Shiv listed so if you are on the phone,

please press Star 3 to raise your hand and I will unmute you. All right. I do not see a raised hand.

I am calling the next speaker, Stephen Chesler. You are unmuted.

MR. CHESLER: Thank you. My name is Stephen Chesler. I am the environmental protection committee chair of Brooklyn Community Board 1. I am reading a letter that the Board, after unanimous resolution, passed, submitted to Governor Cuomo back on February 13, 2020 after National Grid presented their proposals to the Board.

Dear Governor Cuomo, please be advised that at its regular meeting held on February 11, 2020, the Board members of Brooklyn Community Board No. 1 voted unanimously to support the following resolution:

CB1 resolution opposing National Grid's MRI pipeline and expansion of LNG. Brooklyn Community Board No. 1 opposes National Grid's proposed rate hike to expand fracked gas infrastructure in our neighborhoods.

In particular, we oppose National

Grid's plans to spend $61 million to complete Phase 5 of the MRI pipeline, spend $31 million and repair dollars to add portable LNG capabilities at the Greenpoint facility, $54 million in repair funds adding two new vaporizers to the Greenpoint LNG facility, and $23 million rate payer dollars to replace two old vaporizers at the Greenpoint LNG facility.

These projects were opposed for the following reasons:

This is not about modernizing our gas system for heating and cooking. This is about creating an excuse to charge rate payers more money and grow profits for National Grid's shareholders.

The MRI project is a transmission pipeline that will not service the community where it is built where heavily trafficked main thoroughfares and already too stressed trucking routes for local businesses will be dug up.

National Grid is also calling for an expansion of LNG to serve as a transit sport hub to truck LNG to Long Island and Massachusetts. Shipping LNG by truck on our roads will put our community at risk. These

trucks are often called bomb trucks because LNG is highly volatile. These projects will hold us back from achieving our renewable energy goals.

Gas line pipelines are not safe. According to PHMSA, between 2016 and 2018 there was an average 639 pipeline incidents that resulted in a total 15 fatalities, 72 injuries, and a cost to the public of nearly $600 million.

Fracking exacerbates climate change. Initially coined the term natural gas to create the sense that it is harmless, but the extraction, transport and burning of this gas dissuades our health of our water, land and air.

Additionally, high levels of radioactivity in fracked gas in Pennsylvania as well as air pollutants are detrimental to asthma patients, children and pets. This pipeline expansion of LNG will go against city and state climate laws to reduce greenhouse emissions, and those laws are implemented, will become stranded asset that leaves low to middle New Yorkers and middle income New Yorkers to

foot the bill.

The vote was 35 yes, zero no, zero abstentions, zero recusals to reject these proposals, including the LNG terminal, and that was signed by the Board chairperson Dealice Fuller. Thank you.

JUDGE CARUSO: Thank you.

JUDGE McBRIDE: Judge Caruso, can we please call speaker Lily Dalke next.

JUDGE CARUSO: Yep. Lily, are you unmuted.

MS. DALKE: So my name is Lily Dalke. I have worked as a midwife in New York City for the past nine years. My jobs are with the New York City Health and Hospital Corporation, Woodhull and Planned Parenthood. For over a year, I commuted three days a week from my home in Park Slope, Brooklyn, to the Planned Parenthood Clinic in Long Island City, Queens, passing through Greenpoint there and back, and there were many days where the air quality in north Brooklyn was so bad that it smelled like burning tires. I remember arriving at work one morning and Googling "fire today in New York City" because I was convinced

there must be an active fire for the air to smell so badly there in Greenpoint.

In this context where our region's air quality already does not comply with federal standards, I am having trouble understanding why the department in charge of environmental conservation would give an ASF permit to National Grid to allow continued emissions of air pollutants. The fact that this permit would replace National Grid's existing permit does not make it wise or ethical whether or not the new permit will allow for increased emissions. And for the record, I don't trust National Grid's account that it will not. The current level of emissions is already unacceptable.

As a midwife, I know that exposure to fine particulate matter and ozone are associated with increased rates of preterm birth, low birthweight babies, and stillbirths. I know that black mothers in New York City die at over twice the rate of white mothers and that black infants in New York City die at over twice the rate of white infants.

The families I serve at Woodhull

Hospital including many from Greenpoint, Bushwick and Brownsville are among our city's most vulnerable, and these beautiful families paying are heartbreaking prices for decades of corporate opportunism and neglect and environmental mismanagement of their communities.

A 22-year old pregnant woman needing respiratory treatment for her severe asthma so that she and her unborn baby can breathe, an infant born two months early struggling for life in a NICU incubator, first-time parents reeling from the news that they will not be bringing home their long-desired baby.

It is possible to transform these terrible realities but only if those with power use that power to offer respect, protection, accountability and healing to the communities who have the most on the line. In this year of climate crisis, we need our utility service providers and our governmental agencies to act urgently to abandon fossil fuels and embrace new solutions to meeting our city's needs.

The work of environmental and reproductive justice extends far beyond the

project being discussed today but one essential step in the right direction is for the DEC to rescind its negative declaration and deny National Grid's air permit. Thank you.

JUDGE CARUSO: Thank you.

JUDGE McBRIDE: Judge Caruso, can we please recall both Robert Wood and Ruhan Nagra to see if they have joined us by telephone. They were both having difficulty logging in. Robert Wood and Ruhan Nagra.

JUDGE CARUSO: Okay. Robert Wood, if you are on the phone, please press Star 3. I do not see a raised hand.

So I will call Ruhan Nagra again. Ruhan, if you are on the phone, please press Star 3. I do not see a raised hand again.

Judge McBride, there was a carryover from last night, Edward Carrillo. So I will call Edward Carrillo, if he is on the phone, to press Star 3 and I will unmute him.

Judge McBride, we have no more speakers on the list and I do not see any raised hands amongst the ones we just called.

JUDGE McBRIDE: Thank you very much, Judge Caruso. We have completed the

list of speakers who are registered for today. We have been monitoring the chat and we have addressed all the issues that were raised in the chat box.

I want to thank the members of our communication services team at the DEC who have helped us. Judge Caruso, you did an excellent job. Thank you for all your help.

On behalf of the DEC, I want to thank all the members of the public who have taken time out of their lives today to join us for their hearing to make comments on the record. Your comments are very important to the DEC. We thank you for making them. We thank you for taking the time here today.

I will remind you again, written comments will be received by the Department until March 22nd. Mailing address again Caitlyn Nichols, N-I-C-O-L-S, Caitlyn Nichols, New York State DEC Region 2, 47-40, 21st Street, Long Island City, New York, 11101. And the E-mail address is DEP.R2@DEC.ny.gov.

We will be having another session of the hearing this evening at 5:00 p.m. The link is available on the DEC home page, DEC.ny.gov.

Go to our calendar on our home page. And I put in the chat here today also how to register for March 18th so that information is available in our chat and also available on the DEC calendar, again, on the DEC home page, DEC.ny.gov.

Again, on behalf of the DEC, thank you everyone for joining us here today. The hearing record is closed.

(At 2:54 p.m., the proceedings were adjourned.)

C E R T I F I C A T E

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I hereby certify that the proceedings and evidence are contained fully and accurately in the stenographic notes taken by me on the hearing of the within cause, and that this is a correct transcript of the same.



Karen A. Nickel

Certified Realtime Reporter

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